

CHECKLIST – WHAT DO YOU NEED TO DO NOW?



COMPLETE DISCLOSURE OBLIGATIONS

- Tell us if there are matters of particular concern or importance regarding the property that have not already been disclosed in the contract or disclosure.
- Tell us if:-
 - (i) you have any suspicions that the land may have been used for a notifiable activity or may be contaminated; or
 - (ii) a notice has issued that the Environmental Protection Authority believe the land has been used for a notifiable activity or is contaminated; or
 - (iii) a notice has issued under the *Environmental Protection Act 1994* to require a site investigation, remediation or a site management plan; or
 - (iv) a Magistrate has issued an order under the *Environmental Protection Act 1994* to enter the land to conduct a site investigation or carry out work.
- Confirm you have given the Sustainability Declaration (if applicable).
- Tell us if you have conducted work on the property as an owner builder.
- Tell us if there is a swimming pool on the property (and if a unit, on the scheme land) and if so, if a Pool Safety Compliance or Exemption Certificate is in effect.
- Give us details of any unregistered dealings, undisclosed encumbrances tenancies or interests affecting the property.
- Give us details of any unsatisfied judgments, orders or writs affecting the property (or common property) or any threats or claims of this nature that may affect the property (or common property).
- Tell us if you are aware of a proposal from a competent authority affecting the property.
- Tell us whether any access or services pass unlawfully through other land.
- Tell us if an authority has issued a notice to treat or notice of intention to resume the property.
- Tell us if the property is affected by the *Queensland Heritage Act 1992* or is listed on the *World Heritage* list.
- Tell us whether an electrical safety switch and compliant smoke alarm are installed in the property.
- Tell us if you are currently involved in any dispute with your neighbouring property owners about fences or trees, whether you are involved in any proceedings in the Queensland District or Supreme Courts or QCAT or whether any orders have been issued regarding fencing or trees.
- Tell us if there are any encroachments (for example a fence) affecting the property.
- Tell us if any notices to do work issued by a local authority or court on the property are outstanding.
- Tell us if you have agreed to a building covenant, and any of its obligations remain unperformed.
- Tell us about any latent or patent defects affecting the lot, common property or Body Corporate assets.

- Tell us if you are aware of any actual or contingent or expected liabilities of the body corporate of anything else regarding the affairs of the Body Corporate which may affect the buyer.
- Tell us if you have previously granted a power of attorney in favour of the developer.
- Tell us if you are aware of any proposal to record a new Community Management Statement or have a notice of meeting for that purpose..
- Tell us if you have received a notice of meeting of the Body Corporate to be held after the settlement date, and if so send us a copy.
- Tell us what rights of exclusive use of the common property you have been enjoying and if all body corporate consents to these rights and any improvements you have made to the common property are in place.

☐

Send us copies of your ID documents

☐

Tell us if you have a business or personal relationship with the buyer or if the consideration for the sale is less than market value (this will have duty implications and will require the buyer to obtain a valuation for assessment purposes).

☐

Diarise important contract dates

☐

Forward to us a photocopy of the latest Council Rates notice, Water Utilities Notice and Land Tax assessment (if applicable) for the property and tell us if they have been paid or are still outstanding. If the notices are still outstanding you should instruct us as to whether you intend to make payment prior to settlement and, if so, provide us with evidence that the council/water provider/state government has received payment prior to settlement. (This is so we can calculate the appropriate adjustments to settlement figures).

☐

Complete enclosed "Questionnaire" and return to us.

☐

Contact your bank, tell them you are selling (and that we are acting for you in relation to the sale), sign a discharge authority for each mortgage and arrange for the bank to prepare release documentation. (Note that you may have to give a discharge authority to the bank before they will provide payout figures to us).

☐

Tell us the name and contact details of the person you deal with at your bank

☐

Forward copy of Tenancy Agreement to our office and telephone to discuss tenancy generally.

☐

Make a note to contact us closer to settlement to deliver all keys to us/your agent (depending on whether we are required to deliver at settlement or if the buyer will collect them from the agent following settlement).

☐

Telephone us if you are going away with details on how we can contact you at all times while away.